

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1428 of 2015

Taleb Ali being dead his legal heirs:-

1(Ka). Abul Kalam and others.

----- Plaintiff-Respondents-petitioners

=Versus=

Rashid Ahmad and others.

--- 1st party defendant-respondent- opposite-
parties.

Mr. S.N.Goswami with

Mrs. Afsana Begum, Advocates

----- For the petitioners

Mr. Md. Nurul Amin, Senior Advocate with

Mr. Md. Abdur Rashid and

Mr. M. A. Gaffar, Advocates

--- For the opposite-parties.

Heard on 17.01.2017, 24.01.2017 and

Judgment on: 13.02.2017

At the instance of the present plaintiff-respondent-petitioners, Taleb Ali, being dead his legal heirs 1(ka) Abul Kalam and others, this Rule has been issued calling upon to the opposite-parties No. 1-17 to show cause as to why the judgment and decree dated 26.04.2015 (decree signed on 27.04.2015) passed by the learned District Judge, Cox's Bazar in Title Appeal No. 158 of 2002 reversing those judgment and decree dated 30.10.2002 (decree signed on 06.11.2002) passed by the learned Senior Assistant Judge, Cox's Bazar in Title Suit No. 73 of 1999 decreeing the suit against the defendants No. 96(Ka)-96(ga)/ 96(Uma)-96(cha)/ 96(Neo)-

96(Ta)/ 97-101/ 106/ 107/ 113-115/ 117 and exparte against the other defendants should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the predecessors of the petitioners Nos.1(Ka)-1(cha), 2(Ka)-2(Gha) and 3-6 as the plaintiffs filed the Title Suit No. 73 of 1999 in the Court of the learned Assistant Judge, Cox's Bazar for a decree for partition of the suit land and for declaration that the MRR khatian Nos.1544, 2339 corresponding to B.S. khatian Nos.1184, 4864 and 2095 have been wrongly published and also for a declaration that the Rent Case No. 603 of 1933 and the Rent Execution Case No. 142 of 1934 are false and also for a decree for declaration that patta deed Nos.4480, 3269 dated 31.10.1946 respectively are not binding upon the plaintiffs.

The plaintiff's case in short is the suit land measuring 9.96 acres of land was originally belonged to Amir Hossain, Mohabbat Ali, Wahed Ali, Eusuf Ali, Mosarrof Ali and Askor Ali and the record of rights in R.S. khatian was published in their names and they were in possession of the suit land. The abovementioned owners of the land died leaving behind the persons some of whom are the plaintiff-petitioners and some of whom are the defendant-opposite-parties.

During the survey of land under the modified record of right (MRR) khatian the suit land was wrongly recorded in MRR khatian No. 1544 in the name of Abdul Motlob upon the land measuring 9.56 acres and the

MRR khatian No. 2329 in the name of one Nuruddin upon the land measuring .40 acres on 20.03.1999 the plaintiffs requested the defendants for partition but they refused to an amicable partition, thus the suit has been filed.

The present opposite-parties as the defendant Nos. 96-101, 106, 107, 113-115 and 117 contested the suit by filing a written statement denying the statements made in the plaint and contending that the suit land was originally belonged to R.S. tenant Amir Ali and others and the R.S. record of right was published accordingly. However, due to the default to pay rent by them, the original landlord namely Purnno Chandra Paul Chowdhury initiated the Rent Case No. 603 of 1933 in the Court of the then Munsif, Cox's Bazar and obtaining a decree on 11.08.1933. Thereafter, the Rent Execution Case No. 142 of 1934 was started and finally the land was on auction sold for default of Rent Rupies 42/-. One Bepin Behari Rokkhit as the representative of the said Purnno Chandra Paul Chowdhury purchased the land, thereby, the purchased suit land came back to the said Purnno Chandra Paul Chowdhury, who settled the land measuring 9.56 acres from R.S. dag Nos.15539, 15540 in favour of one Abdul Motlob by registering a patta deed dated 07.07.1948. Subsequently MRR khatian No. 1544 was published in the name of the said Motlob. The abovementioned Purnno Chandra Paul Chowdhury died leaving behind Horihar Paul Chowdhury, and Motlob paid rent to him. Earlier the said Purnno Chandra Paul

Chowdhury settled his land measuring .40 acres in favour of Nuruddin vide the registered patta deed dated 31.10.1996 and MRR khatian No. 2329 was correctly published. The said Motlob died leaving behind 6 sons and 4 daughters and his widow, who transfer their respective shares of land to the different defendants by different deeds all dated 23.07.1966. Accordingly, under the B.S. record of right in the B.S. khatian No. 1184 was published.

Besides the above facts the defendant No. 96, 106-108 and 117 as the predecessors of the defendant Nos. 97-105,110-113,114-116 filed the Title Suit No. 20 of 1984 for a decree for permanent injunction against one Sultan Ahmed, who tried to enter into the suit land measuring 9.56 acres on 17.01.1984 and the permanent injunction has been continued and the said Sultan Ahmed has been made a defendant in the present suit.

After hearing the parties the learned Assistant Judge, Cox's Bazar decreed the suit by his judgment and dated 30.10.2002. Being aggrieved the present opposite parties as the appellants preferred the Title Appeal No. 158 of 2002 in the Court of the learned District Judge, Cox's Bazar, who by his judgment and decree dated 26.04.2015 allowed the appeal by his judgment and decree. This revisional application has been filed challenging the said judgment of the appellate Court and the Rule was issued thereupon.

Mr. S.N. Goswami, the learned Advocate appearing with Ms. Afsana Begum, the learned Advocates for the present petitioners submits that the

learned appellate Court below committed an error of law resulting in an error in the decision occasioning failure of justice is not comply with the requirements of Order 41 Rule 31 of the Code of Civil Procedure in delivering the impugned judgment and it is also not a proper judgment of reversal and as such, impugned judgment and decree dated 26.04.2015 is unsustainable in law and is liable to be set aside.

The learned Advocate also submits that the learned appellate Court below committed an error of law by not considering the documents exhibited the Rent Execution Case No. 142 of 1934 regarding a land for auction, but no specific land contains in the said documents produced by the present defendant-opposite-parties, as such no land has been transferred in favour of nobody by the said auction purchaser as claimed by the present defendant-opposite-parties, therefore, the subsequent claimed of any record of right cannot be a valid document in the eye of law.

The Rule has been opposed by the present opposite-party Nos.1-17.

Mr. Md. Nurul Amin, the learned Senior Advocate appearing with Mr. Md. Abdur Rashid and Mr. M.A. Gaffar, the learned Advocates submits that the present petitioners as the plaintiffs filed Other Class Suit No. 73 of 1999 challenging and legality of the Rent Case No. 603 of 1933 and the Rent Execution Case No. 142 of 1934, which is beyond the limitation period stipulate under the provision of law. He further submits that the suit land was correctly recorded in the name of the predecessors of

the present opposite-parties in MRR khatian, which was published in the year around 1964, but challenging the khatian is also barred by limitation, therefore, the present Rule is liable to be discharged. Article 95 of the Limitation Act provides stipulated the limitation period unless there is any allegation of fraud, but the present petitioner was a party in the Other Class Suit No. 20 of 1984, as such, the present petitioner had knowledge as to the rent case and MRR record of right in the year of 1984, as such, the suit is badly barred by limitation.

The learned Advocate also submits that the learned trial Court came to a wrongful conclusion by decreeing the suit filed by the present petitioner without considering the evidence and the vital documents submitted by the present opposite-parties, such as the documents regarding the rent case as well as the execution case (Exhibits-‘kha’ and ‘Ga’ respectively) wrongfully finding that there are some overwritings upon the said documents and came to a conclusion the documents are forged without considering the other relevant documents including the documents produced by the present opposite-parties in support to prove the genuineness of the said exhibits ‘kha’ and ‘ga’, as such, the learned trial Court wrongful decreed the suit, however, the learned appellate Court below came to a lawful conclusion to allow the appeal after considering all the relevant documents produced by the parties, as such, the present Rule is liable to be discharged. The learned Advocate also submits that the present

opposite-parties are in possession of the suit land for a long period of time, accordingly, the MRR and the B.S. record of right have been published in the name of the present opposite-parties and they are paying khajna to the Government and other taxes to the relevant authorities, which have been exhibited ('sa' (ख)) series 1-16, therefore, the Rule has been obtained by misleading the Court which is liable to be discharged.

After considering the submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under section 115(1) of the Code of Civil Procedure along with the annexures therein and also considering the huge volume of lower Court records, it appears to me that the predecessors of some of the petitioners as the plaintiffs filed the Title Suit No. 73 of 1999 in the concern Court for a decree for partition, cancellation of MRR khatian and also for setting aside the decree passed in the rent case and the rent execution case therein and also to cancel the patta deed No. 4480 and 3269 dated 07.07.1948 and 31.10.1946 respectively. It further appears that the said suit was contested by some of the defendants, who are the present opposite-parties.

After considering the complicated factual aspects of the parties the main questions to be decided by the Court are that :-

(1) Whether the suit has been filed within the limitation period :-

- (2) Whether the present petitioner as the plaintiff could prove their case by adduced and produced sufficient documents.
- (3) Whether the exhibits 'ga' and 'gha' contain some overwritings, which have vitiated the evidential value of the documents for providing entitlement upon the suit land.

Regarding the above matters both the learned trial Court and the appellate Court below made their findings in their own way. The learned trial Court considered that MRR khatian was published on 1964 and B.S. khatian was published in the year 1999, but the filing the title suit of 1999 would not affect the entitlement as those are simple record of rights, however, the learned appellate Court below came to a conclusion that the Rent Case No. 603 of 1933 and the Rent Execution Case No. 142 of 1934 and the document as to patta executed on 07.07.1948 registration No. 4480 as well as the MRR and B.S. were known to the present petitioner much earlier to 1999 and he also considered that the exhibit 'ja' (જા)(2) about the Other Class Suit No. 20 of 1984, therefore, the cause of action for filing the suit is not a valid cause of action and the suit has not been filed within the limitation period in the above matter.

I have carefully considered the documents produced by the parties and also considering the submissions made by the learned Advocates considered that the trial Court committed an error of law by concluding that the plaintiffs came to know about the document which are only record of right and not relevant to the entitlement. I also considered that the present

opposite-parties produced sufficient evidence regarding their entitlement upon the land as well as the record of rights up to date and payment of khajna for the suit land which could prove that the present plaintiffs were aware of the entitlement and the record of right much earlier to 1999. Moreover, the present plaintiffs were the parties in the Other Class No. 20 of 1984 when they must have known about the entitlement and the record of right but that waited to file a suit in the year 1999, which is beyond of limitation period.

The settled principle is that the plaintiff has to prove his own case by adducing and producing sufficient evidence. I have examined the documents produced by the present plaintiff-petitioners and which have been exhibited as Exhibit Nos.1(1)-ka, 1-Umo, 1(2)-Umo which are mostly the documents in favour of the present opposite-parties. From the above discussions, it transpires to me that the plaintiffs could not prove with sufficient evidence their entitlement upon the suit land. I have noticed the submissions made by the learned Advocate for the petitioners, which are regarding the validity of the document of the present opposite-parties, but the petitioner failed to produce sufficient to disprove. It is not a good case where the plaintiffs only come with some documents published or created in favour of the defendants, instead of putting their own documents to prove the entitlement in their favour. When the plaintiff-petitioners are

basing their right and entitlement in a negative way to disprove the defendant case which is not helpful for any plaintiff in a civil litigation.

Regarding the question of overwriting on exhibits 'kha' and 'ga' produced by the present defendant opposite-parties, I have carefully examined those documents and overwritings thereupon and I found that actually there are some overwritings upon those documents which have created doubt as to any claim on behalf of the defendant opposite-parties. In a civil suit any doubt upon any single or more document(s) it is a clear to have a presumptive value which can be rebutted by adducing and producing other relevant and authenticated documents. In the instant case there are some overwritings in the Rent Case No. 603 of 1933 Exhibit-'kha' and the Rent Execution Case No. 142 of 1934 Exhibit-'ga'.

If any overwriting has been caused by the authority of the documents without any interference of any relevant parties then the authority can substantiate or authorize the validity of the said document. In the instant case I have noticed after perusing the exhibits 'kha' and 'ga' which contains the information as to submission in the Court the Other Class Suit No. 20 of 1984 where those documents were produced as exhibits 1 & 3. Moreover, in that earlier suit those documents were substituted by unauthorized persons namely Fazlul Haque from the registrar office, who was P.W.1 in the Other Class Suit No. 20 of 1984 and his deposition has been exhibited in the present case as exhibit 'na' (na), therefore, I consider

that despite some overwritings upon those documents which have been authorized by the concerned authorize or creator of the documents, therefore, a question cannot be raised as to the validity to the said documents and the validity in favour of the present opposite-parties.

The matter of the possession upon the suit land, it is surprising to me see that the present plaintiff-petitioners filed the suit for a declaration of forgery in creating documents in the year of 1933, which is the basis for publishing MRR khatian in favour of the defendant opposite-parties. After examining the lower Court record, in particular, the exhibits ka-1 and ka-2, which is the MRR khatian and also exhibited sa(ख)1- sa(ख)16 up-until the date 01.06.1983, therefore, the land acquired the opposite-parties through the rent case and subsequent registered patta No. 4480 dated 07.07.1948 exhibit-‘gha’ (घ) are material proves of the suit land from which it can be inferred that the present opposite-parties and in actual possession for a long period of time. On the other hand, the present plaintiff-petitioners took no fruitful steps to prove their entitlement and possession upon the suit land, as such, the plaintiff cannot get benefit of the suit. The learned trial Court, therefore, committed an error of law by decreeing the suit but and the appellate Court below passed the lawful judgment to allow the judgment and to set aside the decree passed by the trial Court.

Now let me examine the judgment and decree passed by the learned Courts below. The learned trial Court came to a wrongful conclusion to decree the suit on the basis of the following findings :-

“প্রদর্শনী-খ পর্যা-লাচনায় দেখা যায় যে, ইহার ৯ নং কলা-মর ১৮/০৪/৩৩ইং ও ১৯/০৫/৩৩ইং তারিখের ক্ষেত্রে উভয় তারিখের ৩৩ সংখ্যার ৩৩ গুলিতে ঘষা এবং ওভার রাইটিং করা। ২নং কলা-মর ৬০৩ সংখ্যার ৩ অক্ষরটি ওভার রাইটিং করা প্রদর্শনী-খ চিহ্নিত সুট রেজিষ্টার-র ১৩ এবং ১৬ নং কলা-মর সন লিপিকৃত ১৯৩৩ এর শেষ অক্ষরটি ঘষা এবং ওভার রাইটিং করা প্রদর্শনী-খ চিহ্নিত সুট রেজিষ্টার-র ২১ এবং ২২ নং কলা-মর তারিখ লিপির শেষ সংখ্যা ওভার রাইটিং করা এই সকল ওভার রাইটিং বিষ-য় প্রধান তুলনাকারী বা মুদ্রাক্ষর-কর কোন অনুস্বাক্ষর নাই।

প্রদর্শনী-খ চিহ্নিত দলি-লর ৫ পৃষ্ঠার ২১/০২/৩৪, ০৭/০৪/৩৪, ২০/০৬/৩৪ এবং ১০/০৯/৩৪ইং তারিখের সব গুলি ক্ষেত্রেই শেষ সংখ্যা ৪ ওভার রাইটিং করা। এখা-ন প্রধান তুলনাকারীর কোন অনুস্বাক্ষর নাই। প্রদর্শনী-খ পর্যা-লাচনায় আ-রা দেখা যায় যে, এই সুট রেজিষ্টার-র নক-ল জমির কোন তপশীল নাই। অর্থাৎ কোন জমি বিষয়ে কর মোকদ্দমা ৬০৩/৩৩ এবং করজারি ১৪২/৩৪ হইয়া-ছ তাহা বোধগম্য নয়।

বাদীগ-ন নালিশী জমি আর, এস খতিয়া-নর ওয়ারিশ হিসা-ব বন্ট-নর প্রার্থনায় অত্র মোকদ্দমা দায়ের করিয়া-ছ এবং তৎ সা-থ এম, আর, আর, বি, এস খতিয়ান সহ কতিপয় পাট্টা দলিল অকার্যকর, বেআইনী ঘোষনার প্রার্থনা করিয়া-ছ। ইহা স্বীকৃত যে, এতদ অঞ্চলে বি, এস খতিয়ান ১৯৯০ ইং সনে এবং এম, আর, আর, খতিয়ান ১৯৬৪ইং স-ন চূড়ান্ত ভা-ব প্রচারিত হইয়া-ছ। এম, আর, আর, খতিয়ান ১৯৬৪ইং স-ন এবং বি, এস খতিয়ান ১৯৯০ইং স-ন চূড়ান্ত ভা-ব প্রকাশিত হই-ল ও বাদীগন তৎ বিরুদ্ধে অত্র মোকদ্দমা ০৬/০৫/৯৯ইং তারি-খ দা-য়র করিয়া-ছ। খতিয়ান কোন স্ব-ত্বর প্রমাণ নয়। খতিয়ান দ্বারা কার ও স্ব-ত্ব কুয়াশা বা মলিনতা সৃষ্টির পরই কেবল তৎ বিরুদ্ধে মোকদ্দমার কারণ উপজাত হয়। বাদীগন আর্জির ১৫ নং দফায় বলিয়া-ছ যে, বিবাদীগন ভুল এম, আর, আর ও বি, এস খতিয়া-নর ব-ল ২০/০২/৯৯ইং তারি-খ স্বত্ব দাবী করায় তাহা-দর স্ব-ত্ব মলিনতা -দখা দিয়া-ছ। ফ-ল ২০/০২/৯৯ইং তারিখ হইতে বাদীগনের মোকদ্দমায় তামাদি মেয়াদ গণনা হই-ব। বাদীগণ গত ০৬/০৫/৯৯ইং তারিখে অত্র মোকদ্দমা দায়ের করিয়াছে। ফলে বি,এস

খতিয়ান ১৯৯০ইং স-ন এবং এম, আর, আর খতিয়ান ১৯৬৪ইং স-ন প্রচারিত হই-ল ও বদীগণের অত্র মোকদ্দমা তামাদি-ত বারিত নয়।”

However, the learned appellate Court below set aside the judgment and decree passed by the learned trial Court on the basis of the following findings :-

“অপরদি-ক, আপীলকারী/ বিবাদীগ-নর উপস্থাপিত মৌখিক ও দালিলীক সাক্ষ্য পর্যা-লাচনায় দেখা যায় যে, বিবাদী/আপীলকারীগণের নালিশী ভূমি সংক্রান্ত প্রদর্শনী-ক(৪) চিহ্নিত বি, এস ১১৮৪ নং খতিয়ান সহ প্রদর্শনী- ছ সিরিজ চিহ্নিত ১৭ ফর্দ সরকারী কাজনার দাখিলা রহিয়াছে। যাহা দখলের উত্তম প্রমাণক এবং স্বত্বের সহযোগী সাক্ষ্য (collateral evidence)। প্রদর্শনী-ছ সিরিজ চিহ্নিত ১৭ ফর্দ খাজনার দাখিলা পর্যা-লাচনায় দেখা যায় যে, বিবাদী/আপীলকারীগণ ১ নং তফসিলোক্ত নালিশী ভূমির এম, আর, আর, ১৫৪৪নং খতিয়া-নর অনুব-ল পাকিস্তান আমল হই-ত ১৯৮৩ সন পর্যন্ত নিয়মিত খাজনাদি পরি-শোধ করিয়া-ছেন। উভয়প-ক্ষর স্বীকৃত ম-তই নালিশী ভূমির বি, এস খতিয়ান বিবাদী/আপীলকারী প-ক্ষর না-ম চূড়ান্ত ভা-ব প্রচার আ-ছ। আর বি, এস খতিয়ান সরজমিনে দখলের ভিত্তিতে মাপ-ঝোঁ-কর মাধ্য-ম হওয়ায় এবং সংশ্লিষ্ট ব্যক্তিদের বি, এস খতিয়ান প্রচারের বিভিন্ন ধাপে আপত্তি উত্থাপনের সু-যোগ থাকার পরও নালিশী ১ নং তফসিলোক্ত ভূমির বি, এস ৭৪৭০ নং ডিপি খতিয়ান (প্রদর্শনী-ক(৩)) ও বি, এস, ১১৮৪ নং খতিয়ান বিবাদী/আপীলকারী প-ক্ষর না-ম প্রকাশ হওয়ায় তদ্রূপ বি, এস খতিয়ান [প্রদর্শনী-১(গ), ১(ঘ) তথা ক(৪), ক(৫) চিহ্নিত] দ্বারাও নালিশী খতিয়া-নর ভূমি-ত বিবাদী/ আপীলকারী প-ক্ষর দীর্ঘকা-লর দখল প্রমাণ হয়। তদুপরি, দখল সংক্রান্ত আপীলকারী/বিবাদী প-ক্ষর পরীক্ষিত সাক্ষী মোখতার হোছাইন (ডি, ডব্লিউ-১), আলহাজ্ব মোজা-হর আহমদ (ডি, ডব্লিউ-২), লিয়াকত আলী (ডি, ডব্লিউ-৩) এর সা-ক্ষ্যর উভয় অংশ সূক্ষ্মতা-ব পর্যা-লাচনা করি-ল দেখা যায় যে, নালিশী খতিয়ানের ভূমির দখল সংক্রান্ত তাহাদের জাবানবন্দীর বক্তব্য অবিশ্বাস্য বা অনির্ভর-যোগ্য গণ্য করিবার মত কোন বিষয় বাদী/প্রতিবাদী প-ক্ষর জেরায় প্রকাশ পায় নাই।”

From the above findings of the learned trial Court and the learned appellate Court below, I consider that the learned Trial Court committed an

error in respect of limitation period for filing the suit and there are misreading of the document submitted by the parties as well as non considering of the evidence, therefore, the judgment suffers from some errors. On the other hand, the learned appellate Court has rightly considered the evidence and came to a lawful conclusion to allow the appeal and to set aside the judgment of the trial Court. I am there not inclined to interfere upon the judgment and order of the appellate Court below.

Accordingly, I do not find merit in this Rule.

In the result, the Rule is discharged.

The interim order of stay and status-quo upon operation of the impugned judgment and decree dated 26.04.2015 (decree signed on 27.04.2015) passed by the learned District Judge, Cox's Bazar in Title Appeal No. 158 of 2002 is hereby recalled and vacated.

The office is directed to communicate this judgment and decree and also send down the Lower Courts Record immediately.